

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

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JOSEPH WILSON,
Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
CHRISTOPHER DIGIOIA, Shield # 16969,
76th Precinct,
NEW YORK CITY POLICE OFFICER
FERNANDO LOPES, Shield #13303,
76th Precinct,
NEW YORK CITY POLICE OFFICER
BRITTANY CARDINALE, Shield # 2838
76th Precinct,

Defendants.

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Plaintiff, JOSEPH WILSON, by his Attorney, VICTOR M. BROWN, ESQ., as and for a verified
complaint alleges respectfully and states as follows:

FOR A FIRST CAUSE OF ACTION

NATURE OF ACTION

1. This is a Civil Rights, False Arrest, Intentional Assault, and Negligence and/or Negligent supervision action for compensatory damages proximately resulting from Plaintiff having been falsely arrested and having excessive force used against him by the above captioned Defendant Officers on October 21, 2017 in the vicinity of 285 President Street, Brooklyn, New York.

NOTICE OF CLAIM

2. That on January 3, 2018, Plaintiff JOSEPH WILSON, prior to the bringing of the within action, and within ninety days after the date of the alleged incident, filed a Notice of Claim which was duly served upon the Defendant(s).
3. That more than thirty days have elapsed since the service of the said Notice of Claim and notice of intent to sue upon the Defendant(s).

4. That the Defendant(s) and its Comptroller have failed, neglected to pay, settle, compromise or adjust the claim of the Plaintiff.
5. That this action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
6. That the Plaintiff has duly complied with all the conditions precedent to the commencement of this action, including submission to an inquiry concerning the justness of the claim on April 13, 2018 pursuant to General Municipal Law 50.

THE PARTIES

7. That at all times mentioned, the Plaintiff, JOSEPH O. WILSON, is a United States citizen, who was, and still is a resident of the State of California, attending college and residing at a dormitory at New York University (hereinafter NYU).
8. That at all times mentioned, Defendant CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department, which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department, and the employment of Police Officers, as said risk attaches to the public consumers of the services provided by THE NEW YORK CITY POLICE DEPARTMENT.
9. That upon information and belief, at all times relevant, Defendant CITY OF NEW YORK, employed Police Officers, Corrections Officers and medical personnel and others hereinafter mentioned in this complaint.
10. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers
11. Defendant(s), NEW YORK CITY POLICE OFFICERS CHRISTOPHER DIGIOIA, Shield # 16969, FERNANDO LOPES, Shield # 13303, and NEW YORK CITY POLICE OFFICER

BRITTANY CARDINALE, Shield # 2838, upon information and belief, all of the 76th Precinct of THE NEW YORK CITY POLICE DEPARTMENT, were and are, at all times relevant, Officers, employees and agents of Defendant CITY OF NEW YORK. Defendant Officers DIGIOIA, LOPES and CARDINALE are sued individually and in their official capacities. At all times relevant, Defendant Officers DIGIOIA, LOPES and CARDINALE were acting under color of State Law and in the scope of their duties and functions as agents, servant and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. Defendant Officers DIGIOIA, LOPES and CARDINALE received training in making arrests, the utilization of force in effecting an arrest, and legal training from Defendant CITYOF NEW YORK and THE NEW YORK CITY POLICE and were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK at all times relevant herein with the power and authority vested in them as police officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and incidental to their lawful duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

12. That on October 21, 2017, at approximately 1:15 a.m., in the vicinity of 285 President Street, Kings County New York, Plaintiff Joseph O. Wilson was on his way home from a party when he was subjected to an unlawful search and false arrest by named Defendants, New York City Police Officer BRITTANY CARDINALE, Shield Number 2838, of the 76th Precinct, New York City Police Officer CHRISTODPHER DIGIOIA, Shield Number 16969, of the 76th Precinct, and New York City Police Officer FERNANDO LOPES, Shield Number 13303, of the 76th Precinct, and held in custody of THE NEW YORK CITY POLICE DEPARTMENT for approximately twenty four hours, without lawful reason or cause.
13. That as a result of the false arrest and subsequent prosecution of the Plaintiff, the Plaintiff was unlawfully detained in custody for approximately twenty four hours, forced to retain counsel,

incurring legal expenses to defend himself against the false charges levied upon him by the named Defendant Officers.

14. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

15. The Plaintiff repeats and realleges each and every allegation contained in paragraphs One (1) through Fourteen (14) with the same force and effect as if set forth here at length.

16. That during the effectuation of the arrest by named Defendants, New York City Police Officer CHRISTOPHER DIGIOIA, Shield Number 16969, and New York City Police Officer FERNANDO LOPES, Shield Number 13303, utilized excessive force against the Plaintiff, causing Plaintiff to suffer a fractured hand, and causing Plaintiff to suffer physical impairment, extreme physical pain and discomfort, and requiring medical treatment at a local area hospital.

17. That named Defendant CITY OF NEW YORK, is responsible for the training and supervision of the named Defendant Officers, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

18. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

19. The Plaintiff repeats and realleges each and every allegation contained in paragraphs One (1) through Eighteen (18) with the same force and effect as if set forth here at length.

20. That at the time and place aforesaid, named Defendant Officers CHRISTOPHER DIGIOIA and FERNANDO LOPES willfully, wantonly, maliciously and intentionally assaulted the Plaintiff causing the Plaintiff to suffer the injuries previously alleged.

21. At the time of such assault, Defendant Officers DIGIOIA and LOPES were employees and or servants of said Defendant CITY OF NEW YORK, and were acting as agents of Defendant CITY OF NEW YORK, in doing the acts complained of herein and within the scope of their authority.

22. Solely by reason of the foregoing negligent training and supervision of the named Defendant Officers by Defendant CITY OF NEW YORK, the Plaintiff became sick, sore, lame and disabled, and suffered great physical and mental pain requiring medical treatment, and impairing his schooling and education at a local area University.
23. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

24. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Twenty Three (23) with the same force and effect as if set forth here at length.
25. Solely by reason of the foregoing negligent training, supervision of Defendant CITY OF NEW YORK of the named Defendant Officers, resulting in Plaintiff's false arrest and malicious prosecution, Plaintiff's civil rights, pursuant to United States and New York State Constitutions, were violated by the named Defendant Officers and Defendant CITY OF NEW YORK, causing the Plaintiff to suffer great mental distress, and injuring his reputation and character.
26. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendant(s) in the amount of One Million Dollars (1,000,000.00) together with the costs and disbursements of this action.

/S/

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Attorney for Plaintiff

Dated:
October 16, 2018